

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Chief Judge Edward W. Nottingham

Nel Steffens, Deputy Clerk
Therese Lindblom, Court Reporter

Date: November 6, 2007

Civil Action No. 06-cv-01016-EWN-CBS

Parties:

Counsel:

ARTHUR JAMES LOMAX,

Pro Se

Plaintiff,

v.

SGT. PENSON,

Thomas Bigler

Defendant.

TRIAL MINUTES

Trial to Jury - Day Two

9:21 a.m. Court in session.

Jury panel is not present.

Jury instruction conference.

9:36 a.m. Jury present.

9:37 a.m. Closing argument by Plaintiff Lomax.

9:43 a.m. Closing argument by Mr. Bigler.

10:00 a.m. Rebuttal argument by Plaintiff Lomax.

10:02 a.m. Court instructs jury.

Courtroom Minutes
06-cv-01016-EWN-CBS
Chief Judge Edward W. Nottingham
Page 2 of 2

10:37 a.m. Court security officer sworn.

10:38 a.m. Jury retires to deliberate.

Discussion regarding revision of verdict form.

10:43 a.m. Court in recess, subject to call.

12:12 p.m. Court in session.

Court informs parties that jury has reached a verdict.

12:13 p.m. Jury is present.

12:13 p.m. Court reads the verdict.

Court thanks jurors for their service, advises them that counsel and parties may not contact them, and they are discharged.

12:15 p.m. Jury exits courtroom.

ORDERED: **The clerk shall forthwith enter judgment on the verdict in accordance with the jury's verdict, finding in favor of the defendant and against the plaintiff, dismissing the case with prejudice.**

12:17 p.m. Court in recess.

Total time in court: 01:27

Trial concluded.